

CCMA Rules and LRA Regulations

CCMA RULES — KEY POINTS FOR PRACTITIONERS

Referral and service

Disputes are referred on prescribed forms with proof of service. Time periods in the LRA are strict; condonation applications require full affidavits covering degree of lateness, explanation, prospects of success, prejudice and interests of justice.

Conciliation

Held in private. Commissioners attempt settlement. If unresolved, a certificate of outcome is issued.

Arbitration

More formal but inquisitorial elements remain. Representation rules restrict legal representation in misconduct/incapacity dismissal arbitrations unless the commissioner and parties consent or the commissioner rules that it is unreasonable to expect a party to deal with the dispute without legal representation (complexity, comparative ability, etc.).

Con-arb

Unless a party objects timeously, conciliation may be followed immediately by arbitration on the same day for certain dismissal disputes.

NOTE: Educational summary of regulatory practice.

— End of curated extract. Verify official text before reliance. —